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01

ODULE V
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administrative relation, financial
Inter state council, Finance

provision, freedom of trade and
and intercourse, comptroller and
eral of India, Public Services, Public
mission, administrative tribunals

language, elections, special provisions
certain classes, amendment of the

THE INDIAN FEDERAL SYSTEM

the states or their boundaries by simple majority.

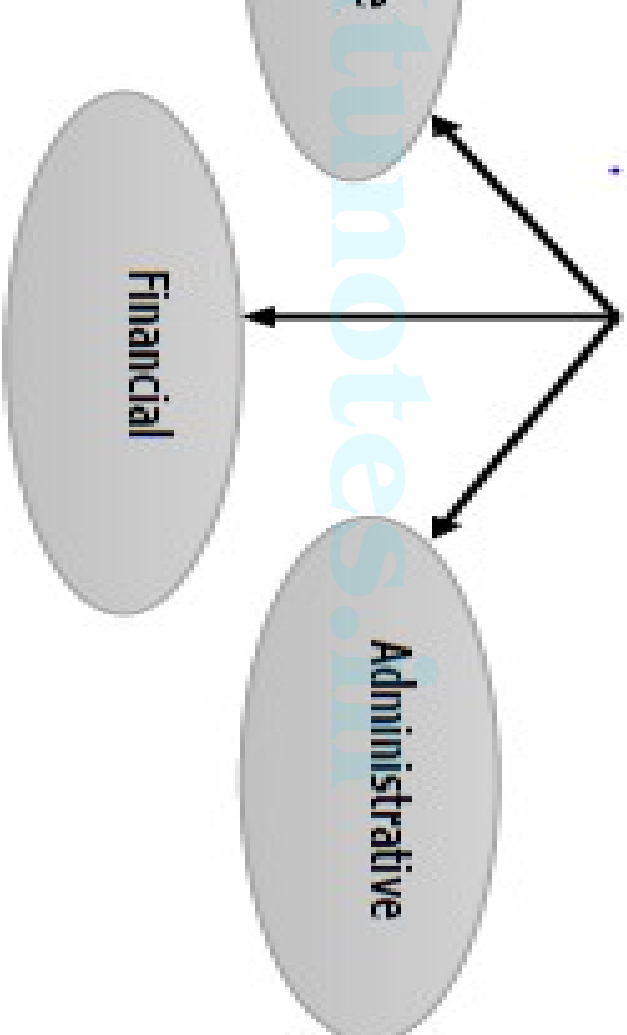
States, no equality of representation is
states have equal representation regardless of

ve the federation.

between Union and State are under

ons
relations
ns

Cellulose state metabolism



jurisdiction of laws made by the
and by the state legislatures
of legislative subjects

liament to legislate with respect to a
state list.

control over state legislation.

whole or any part of the territory of Parliament alone can make 'local legislation'. Thus, the laws of the state are also applicable to the Indian territory. The laws made by a state are not applicable outside the state.

Article 253 can make laws for the whole or any part of the territory of the state. The laws made by a state are not applicable outside the state.

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rent list

s on the subjects given in the
st. 98 subjects (after 42nd
on Amendment Act, 1976) (few
subjects listed below)

Foreign Relations, Post and
International War and Peace,
al Trade, Commerce,
o, Coinage, Railway, Reserve
International Debt, Atomic Energy,

s on the subjects given in the
t. 61 subjects (after 42nd
onal Amendment Act, 1976)
rtant subjects listed below)

Health, Roads, Agriculture,
Prisons, Local Administration,
on of Water, Police, etc..

n : In the case of Emergency,
liament automatically grabs the
legislation on the subjects
ne State List.

Parliament as well as State Legislatures, number of legislation on subjects given in the List. 52 subjects (After the 42nd Amendment Act, 1942) (few important below)

Force, News Papers, Trade Unions, Books, Items, etc..

In disagreement, the legislation passed by the President shall prevail over the law passed by the States.

enumerated in the State List under the
extraordinary circumstances:

Sabha Passes a Resolution : If the Rajya
s that it is necessary in the national interest
it should make laws with respect to goods
tax or a matter in the State List

Additional Emergency: The Parliament acquires
legislate with respect to goods and services
s in the State List, while a proclamation of
gency is in operation.

and a request. which the legislatures of two of
s resolutions requesting the Parliament to enact
in the State List.

International Agreements: **The** Parliament
in any matter in the State List for implementing
treaties, agreements or conventions.

President's Rule: When the President's rule is
in force, the Parliament becomes empowered to make
laws in any matter in the State List in relation to

all reserve certain types of bills passed by
ature for the consideration of the President.

matters enumerated in the State List can
in the state legislature only with the
on of the president.

direct the states to reserve money bills and
bills passed by the state legislature for the
consideration during a financial emergency.

utive power of states shall be in compliance with
Parliament. The Union can extend their power

een the Union and States

changes in

th and credit shall be given to public Acts and
gs.

parliament can decide upon a dispute with
of inter-state river.

owers President to establish Inter-state Council
on disputes between state

ency, the Union Government will have complete State.

263 in Part XI of the Constitution deal with the relations between the Centre and the states.

mpowers the Union to control the State even at times through the;

the state government

of Union functions

VICES

credit clause

ting to water

ouncil

to ensure compliance with the laws made by the state. Any existing law which applies in the state.

and not impede or prejudice the exercise of executive power in the state.

Union functions

With the permission of the governor of the state, can perform functions which are related to any matter which is in the ambit of the executive power of the union.

S

There is an All India service common to the union for the purpose of appointment of persons to any service.

to manage important and crucial sectors of the country Ex : IAS, IPS etc

formulate laws to provide for the adjunction of
complaint with reference to the use, distribution
of or any in any inter state river – or any inter
y.

utes cannot be settle by negotiations, water
will be established for the adjunction of the
referred by tribunal, decision by the tribunal

Council:

Empowers the **President** to establish
Council.

The Council of India was **established**
after,

Council have been set up.

President of the council

duty of ;

ng and advising upon disputes

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gating subjects of common interest.

recommendations upon any

common interest.

ment) has the power to make grants in aid which is in need of financial assistance. Government may impose restrictions/ conditions of grants.

Thus the union government can interfere in financial matters and exercise control and co-ordinate the welfare schemes of the States on a large scale.

credit clause

Under Article 265 credit must be given to all public acts, and the judicial proceedings of the union and every State extend throughout the territory of India.

exclusive power to levy taxes on the subjects in Union

s on State List.

es can levy taxes on Concurrent List.

taxes on the residuary subjects (which are not in all the

axes are collected by states and transferred to the Union.

llection is done by the Union and is distributed among

financial relations.

owers between union and state is one of the
es of a federal union. Financial authority is
n the union(Centre) and the States.

distribution of sources of revenue between
al is based on the scheme laid down by

India Act 1935

d under 4 heads

.aw

of tax revenue between centre and state
d

7 fund of India

Law

be collected except by the authority of valid
taxation

limitation on the taxing power of the state,
all not collect a tax, except by authority of

Division of Tax Revenue between centre

Central Government (Central Government:) has power to levy taxes on subjects enumerated in the Union List and state has exclusive power to levy taxes on enumerated in the State List.

Concurrent List. No tax entries in the Concurrent List. The taxes in the union list may be wholly or partially to the states.

the Centre but Collected and Appropriated
Article 268) E.g. Stamp duties

Collected by the Centre but Assigned to the
States (Article 269)
(69)

Collection of Goods and Services Tax in Course of
Inter-State Trade or Commerce (Article 269-A) (E.g. GST)

Collected by the Centre but Distributed
to the States (Article 270)
(Centre and the States)

Collected and Retained by the States . E.g.
Income tax, taxes on lands and buildings etc.,

the power to make such grants in need of
ates

ent may impose restrictions/ conditions for these

overnment can interfere with state financial matters

Fund of India

ed for specific purpose

finance secretary on behalf of the President of India
unforeseen matters.

und is used, an equivalent amount is transferred to
fund and maintained constant.

ce governments

wide powers in order to handle special crucial

Centre can assume the legislative and
any state.

empowers the Centre to curtail freedom and

emergency provisions, scholars are hesitant to call
to be fully Federal.

India has the power to impose emergency rule in
Indian states if the security of part or all of India is
war or external aggression or armed rebellion”
can be proclaimed only on the basis of written
the President by the Cabinet

s a threat for peace, security, stability and country:

on

ally happen, but if there is a possibility of
the president can declare emergency)

on make proclamation of emergency is they are
ve emergency exists. (Article 352).

al rights are curtailed.

ia is curtailed during emergency.

by **written advice from Union Cabinet.**
of Parliament should approve within
declaration. (by 2/3 majority).

ved, emergency will remain for a period

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Revocation National Emergency:

President by another proclamation.

e members in Lok Sabha can

revoke emergency by simple majority.

imately the emergency become

form of governance changes
y.

nt makes laws on the state list.
: exercises the executive

he states.

a can extend tenure by 1 year.

ental Rights are automatically
d.

proclaim emergency on a state if they are satisfied
in the Governor that the governance of the state
will run smoothly.

proclamation on account of failure of Constitutional
government (Common Language Presidents Rule).

can

has any function of the State (other than High

state legislature is exercised through the

able decisions.

shall give satisfactory report to the President
necessity.

Parliament shall approve within two months.

, emergency will remain for a period of six

which can be extended several times up to 3

It is identified that financial emergency or any of its part is in

operative and legislative powers will be exercised by the Union.

It is approved by the both houses of the Parliament within two months.

Proclamation.

ational Emergency

assumes all the power over the

may dissolve Legislative

may make any other
financial decisions

shall proclaim

by Parliament in two houses
majority

cally comes to an end on the
ncial year (31st

for Revocation

a proclamation by the President

ercourse, carried out within the country.

s is ensured within different states (Person from goods in other states).

y of nation removing geographical barriers.

ot absolute and can be restricted.

impose restrictions if necessary for public

cannot be imposed infavour of any state over

e taxes from imported from other states.

e reasonable restrictions out of public interest.

Functional Bodies in

India. They are mentioned in the Constitution. their power from the Indian Constitution, any mechanism of the constitutional bodies would constitutional amendment.

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of India

Auditor General (CAG)

ion

ion

sions for Scheduled Castes and Scheduled Tribes

Public Service Commissions

ll

bunal

of

g upon disputes between states.

s of common interest.

tions upon any subjects of common interest.

cil of India was established in 1990. Thereafter, five

en set up.

f the council

states.

union territories having legislative assemblies.

union territories not having legislative

sters, including Home Minister.

es being administered under President's rule.

proceeds' of taxes between Center and the
d as per their respective contributions to
governing Grants-in-Aid to the states and
the same.

ndations to the president as to the measures
t the Fund of a State to supplement the
nchayats and municipalities in the state on
ommendations made by the finance
state.

related to it by the president in the interest

Commission is an autonomous
It is governed by the
of India.

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IAS (Chair of Finance Commission)

ent and independent body to see and fair elections in the known as the Election on. The commission is e for holding Lok Sabha of India.

with the power of direction, finance, and control of elections to state legislatures, the office of president the office of vice-president of India.

Commission is an all-India body that is both the Central government and the members. It must be noted here that the does not deal with the elections to the states and Panchayats in the states. Hence, State Election Commission is provided by constitution of India.

CSC) is a constitutional body to safeguard the interests of Scheduled Castes in India. It seeks to protect the SC community from discrimination and exploitation, as well as facilities to uplift the SC community.

Article 38 of the constitution of India provides for this commission.

a constitutional body that was
d by the Constitution (89th
nt) Act, 2003.

mission is an authority working
economic development of
Tribes in India.

President.

Students regarding the accounts of the Country

Accounts of Union and States

Audits for both Union and States

Concerned with the Contingency Fund, the
Fund of India and states, and the Public Accounts Fund
Centre.



h functioning of democracy in India.

es in India are classified into three categories -

Central services and state services.

IAS)

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are those services which are common to both the governments. The members of these services posts (or key posts) under both the Centre and the them by turns.

tive Service (IAS)

ice (IPS)

ice (IFS)

Central services work under the **exclusive Central government**.

ized (functional and technical) position in various
the Central government.

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Engineering Service

Information Service

Communication Service

Technical Service

Administrative Service

Other Service

of state services work under the **exclusive** **state government**. They hold different positions (political and technical) in the departments of the state. However, they occupy lower positions (in the hierarchy of the state) than those held by the media services.

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vice

vice

Cs:

ice Commission (UPSC)

ce Commission (SPSC). Ex.: KPSC

ce Commission (JPSC)

vice Commission (UPSC) to conduct examinations
o the "All India Services"(AIS) and the "Higher
HCS) and to advise the President on disciplinary

service Commission in every state to conduct
recruitment to state services and to advise
disciplinary matters

group

ces Examination (India) (CSE)

Defence Services Examination

Medical Services Examination

ted group

recruitment Control Board (RRCB)

ction Commission (SSC)

the law, the term 'tribunal' is used in a significant sense to only the adjudicatory bodies which lie outside the ordinary judicial system.

The effective system of the judiciary with fewer powers is delegated to the administrative authorities, thus, giving rise to administrative adjudicatory bodies which holds quasi-judicial powers.

To avoid regular court approach by public servants.

Administrative matters and is vested with limited jurisdiction. This is a peculiar issue.

tribunals must have statutory origin i.e. they must be created by statute.

Some features of the ordinary courts but not all.

A tribunal performs the quasi-judicial and judicial functions and is bound to act judicially in every circumstance.

They are governed by strict rules of evidence and procedure.

Tribunals are independent and not subject to any executive interference.

possesses the powers of a court to
swear in witnesses, to administer oaths and to
production of documents, etc.

tribunals are bound to abide by the
of 'natural justice'.

negative writs of certiorari and
are available against
tribunals of administrative tribunals

Administrative Tribunal

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Administrative Tribunals (SATs)

Administrative Tribunal (JAT)

ative tribunal called the **Central Administrative Tribunal (CAT)**.

as set-up on 1 November 1985.

jurisdiction to deal with **service** pertaining to the Central Government employees or of any Union or local or other government under of the Government of India, or of a wholly owned or controlled by the Government.

...s the Central Government to
State administrative tribunals
tic request of the concerned
ernments.

CAT, the SATs exercise original
n in relation to recruitment
service matters of State
ent employees.

more states might ask for a tribunal, which is called
Administrative Tribunal
which exercises powers of the
tribunals for such

al judicial rs are derived	It is an agency created by Statute and invested with judicial powers.
er to try all an express or	It has the power to try cases that are of the type that the Statute confers upon them. They are formed for adjudicating cases of a particular kind.
Independent of	Tenure, terms and conditions of the services of the members of tribunals are entirely in the hands of the executive.
e is trained in	The presiding officer may or may not be trained in law.
artial and not matter of the	Here, the tribunal may be a party to the dispute.
by all rules of	Tribunals are bound by the principles of natural justice and not the civil procedure codes.
f legislation.	Tribunals cannot decide the vires of legislation.



ILLANEOUS PROVISIONS

languages of the Union

Devanagari script. Numerals shall be in the Devanagari type (Arabic numerals).

Also official language indefinitely until the Government changes it.

languages of a State Hindi or any other language shall be decided by the legislature of the state.

ch have been referred to as scheduled
d given recognition, status and official

The Government of India has awarded the
classical language to Kannada, Malayalam,
Tamil and Telugu. Classical language status is
languages which have a rich heritage and
ture.

‘lingua franca’for almost all the northern and

As, President, Vice-president) is vested in
mission.

be ineligible in electoral roll in grounds of
caste or sex.

House of the People and Lok Sabha are on the basis of
Franchise(Universal Suffrage).

may make rules related to elections and

It generally interfere in electoral matters.

for safeguarding the **SCs, STs, OBCs and Backward Classes**.

are reserved in House of People, proportional to their population.

It nominates two members from Scheduled Caste community to the Lok Sabha.

States and Scheduled Tribes.

Priority is a class of people whose mother tongue is different from that of the majority in the State. The State has a duty to provide adequate facilities for instructions in the mother tongue of the minority.

The State imposes a duty on the State to endeavor to provide adequate facilities for instructions in the mother tongue of the minority at the primary stage of education to the extent practicable. The State is also bound to take steps for promoting linguistic minority.

ation's fundamental law or supreme law.

ensures the sanctity of the Constitution of India
k on arbitrary power of the Parliament of India.

easy provisions and require compliance with other

amendments:

in Parliament
in Parliament

of Parliament and the total state.

s have been made in the Constitution till date.

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